IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 122
CAA-141(PB)/2018

IN THE MATTER OF:
Times Content Ltd and Times Internet Ltd. ... Petitioners/Applicant

SECTION: Under Section 230-232

Order delivered on 22.04.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Petitioner: Mr. Abhishek Seth, Adv.
For the ITD: Ms. Laxami Gurung Sr. Standing counsel.
For the RD: Mr. C. Balooni, CP
For the OL: Ms. Swati Koushal, Adv.

ORDER

In pursuance of order dated 03.04.2019 an affidavit dated 10.02.2019 has been filed by one Mr. Mahesh Chand Gupta, Chief Financial Officer of the transferee company. In the affidavit an undertaking has been filed that on conclusion of the proceedings pending in the NCLAT / scrutiny proceedings and assessment proceedings any amount due and payable by the transferor company, the transferee company undertakes to pay those amounts after sanctioning of the scheme.

Ms. Laxmi Gurung, standing counsel for Income Tax Department argued that Mahesh Chand Gupta has no power given by the resolution of the board of directors to file such undertaking.

In that regard learned counsel for the petitioner has drawn our attention to page 84 certified copy of the resolution passed in the meeting of the Board of Directors, Times Content Limited, held on 08.08.2018 i.e. transferor company (P3) and the affidavit of the transferee company (P2) on the same date.

In both the affidavits wide power has been given in clauses I, J, K, L to the authorised person namely Mr. Mahesh Chand Gupta to do virtually everything pertaining to the scheme.

Accordingly, we take it that he has been authorised to file undertaking. In reply to the objection raised by the RD in respect of increase in authorised share capital, undertaking has been filed stating that the required additional fee shall be paid.

Official Liquidator has raised no objection.

Argument heard, Order Reserved.

-Sd-

(M. M. KUMAR)
PRESIDENT

-Sd-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

22.04.2019
Deepak